

**38th Meeting of the
INTERNATIONAL COMMITTEE of LEGAL METROLOGY
Kyoto, 5–8 November 2003**

DECISIONS and RESOLUTIONS

Opening addresses

The Committee noted the opening address delivered by Mr. Hiroshi Ogawa, Director General of Industrial Science & Technology Policy & Environment Bureau, METI, by Dr. Akira Ono, Director of NMIJ, and by Mr. Gerard Faber, CIML President.

Roll-Call – Quorum

The roll of Delegates was called; it was found that 49 CIML Members (out of 60) were present or represented and that the statutory quorum of three-quarters was therefore reached.

Approval of the Agenda

The Final Draft Agenda (Version 2 dated 21 October, amended 28 October) was approved.

1 Approval of the Minutes of the 37th CIML Meeting

The Minutes of the 37th CIML Meeting (Saint-Jean-de-Luz, 2002) were approved without modification.

2 Implementation of the Decisions and Resolutions of the 37th CIML Meeting

The CIML President and BIML Director explained that all the Decisions and Resolutions were covered by the various items on the agenda.

3 Member States and Corresponding Members

The CIML President welcomed two new Members, New Zealand and Vietnam. The number of OIML Member States was therefore 60.

The BIML Director reported about the situation of arrears due by some Member States. The Committee agreed on the following:

- Considering that the Democratic People's Republic of Korea has paid all its current contributions, the situation of its remaining arrears, for which delays had been granted by the 11th Conference, will have to be re-examined by the 12th Conference in 2004;
- Considering that the arrears of Zambia have increased with regard to the delays granted by the 11th Conference, the Committee instructed the CIML President to examine the situation with representatives of Zambia and to strike Zambia off the list of OIML Member States if this situation has not substantially improved by the end of February 2004.

The Committee decided that Vietnam will be classified in Class I for its financial contribution to the Organization.

4 Report on Presidential Council activities

The Committee took note of oral information given by the CIML President on the activities of the Presidential Council.

6 Financial matters

6.1 Adoption of the Auditor's Report for 2002

The Committee took note of information given by the BIML Director concerning errors that needed to be corrected in the Auditor's Report. The Committee:

- Instructed the CIML President to appoint a new Auditor;
- Instructed the Bureau to have the 2002 accounts re-audited by this new Auditor; and
- Instructed the Bureau to present these 2002 accounts at the 39th CIML Meeting, together with the 2003 accounts, certified by the new Auditor.

6.2 Realization of the 2002 budget and estimates for 2003

The Committee took note of a presentation given by the BIML Director on the realization of the 2002 budget and on the estimates for 2003.

6.3 Preliminary proposal for the 2005-2008 budget

The Committee took note of the presentation, given by the BIML Director, of a preliminary proposal for the 2005-2008 budget. The Committee approved the guidelines set out in this document and instructed the BIML Director to prepare a proposal for the 2004 Conference, highlighting the distinction between:

- The normal budget, financed by Member State Contributions, and other usual income of the Organization; and
- The optional, additional budget, corresponding to the implementation of the MAA and changes in the way in which publications will be distributed, and whose charges and income shall be specific.

6.4 Progress on the revision of the Financial Regulations of the OIML

The Committee took note of information given by the BIML Director concerning the revision of the OIML Financial Regulations. The Committee instructed the Bureau to complete this Draft Revision and to submit it to Member States in time for its approval at the 39th CIML Meeting and 12th OIML Conference in 2004.

7 The situation at the BIML

7.1 Draft Revision of the Staff Regulations

The Committee took note that the draft revision of the BIML Staff Regulations would be implemented without resulting in an increase in salary costs. The Committee approved the revision of the BIML Staff Regulations, which will come into force on 2004.01.01.

7.2 BIML Staff

The Committee approved the renewal of the contract of Mr. Ian Dunmill as Assistant Director, for another five-year term starting in March 2004.

7.3 BIML activities

The Committee took note of a presentation of the activities of the BIML since the last Committee Meeting.

7.4 Progress in the use of the internet and e-mail

The Committee took note of information given by the BIML Director concerning the extension of the use of the internet in the Organization's activities. The Committee instructed the BIML Director to continue working in this direction so as to provide the necessary tools on the internet and hence increase the efficiency of the Organization.

8 OIML Action Plan implementation and revision

The Committee took note of a report given by the BIML Director about the current revision of the Action Plan.

The Committee decided that this Revision of the Action Plan, covering the period 2004-2005, will be sent for postal approval with a deadline of 2003.12.31.

9 Technical activities

9.1 Work program of TCs/SCs

The Committee took note of information delivered by Vice-President Mr. Issaev and by the Bureau concerning OIML technical activities and, while expressing its satisfaction with the increased volume of work accomplished during the last 12 months (compared with the previous one-year period), requested OIML TCs and SCs to accelerate their work, especially in the fields listed as high priority and priority projects, taking into consideration proposals to accelerate OIML technical work as discussed under Item 9.3.

The Committee approved the project as proposed by TC 18 on *Ophthalmic instruments - Impression and applanation tonometer*.

9.2 Examination of the situation of certain TCs/SCs

The Committee took note of a proposal submitted by France for new work, in agreement with the TC 3 Secretariat and the BIML, and instructed TC 3/SC 5 to set up a Working Group chaired jointly by France and the BIML to

develop the two projects in question and to consider three new projects proposed by France which are necessary for the accreditation of legal metrology bodies.

The Committee took note of information given by the BIML on the generally unsatisfactory situation of CIML postal voting in 2003, and requested its Members (especially those who are late in voting) to comply more regularly with fulfilling their duties, thus contributing to the timely approval of drafts submitted.

9.3 Acceleration of technical activities

The Committee took note of the proposals included in the document "Acceleration of OIML technical work".

The Committee instructed the CIML Presidium Members and the BIML to start implementing the proposed actions, complemented with those put forward by CIML Members during discussion of this issue.

The Committee also instructed the BIML to regularly report back at CIML Meetings on the measures taken and results achieved.

9.4 Non-conclusive results of postal ballots

The Committee took note of information delivered by the BIML on the present situation of CIML postal approval of the various drafts and decided to proceed under Item 9.5 with the approval of the following drafts, for which an insufficient number of votes have been received:

- Amended version of R 49-2 (as amended and approved by TC 8/SC 5 based on the amended Annex A of R 49-1) together with the DR of R 49-3;
- Three drafts (DR of the Test Report Format to the revisions of R 61-2 and R 134, and the DR of the Amendment to OIML R 99/ISO 3930).

9.5 Approval of draft Recommendations and Documents

The Committee approved the following draft Recommendations and Documents:

- DR 1 Revision of R 48
Tungsten ribbon lamps for calibration of radiation thermometers;
- DR 2 Revision of R 52
Hexagonal weights, ordinary accuracy class from 100 g to 50 kg;
- DR 3 Revision of R 61-1
Automatic gravimetric filling instruments, Part 1: Metrological and technical requirements - Tests;
- DR 4 Revision of R 87
Quantity of products in prepackages;
- DR 5 New Recommendation (R 135)
Spectrophotometers for medical laboratories;
- Amended version of R 49-2
Water meters intended for metering cold potable water. Part 2: Test methods;
- Draft Recommendation R 49-3
Water meters intended for metering cold potable water. Part 3: Test report format;
- Draft Revision of R 61-2
Automatic gravimetric filling instruments. Part 2: Test report format;
- Draft Recommendation R 134
Automatic instruments for weighing road vehicles in motion - Test Report Format;
- Draft amendment to OIML R 99/ISO 3930
Instruments for measuring vehicle exhaust emissions.

10 Mutual Acceptance Arrangement (MAA) and Checklists

The Committee took note of a presentation given by the TC 3 Secretariat and by the BIML Director on the progress on the above-mentioned documents.

The Committee approved the MAA and:

- Instructed the CIML President to set up a working group in order to address the financial aspects of the implementation of the MAA and to come up with financial regulations for this MAA in due time for its approval at the next CIML Meeting;
- Instructed the BIML and the TC 3 Secretariat to prepare for the implementation of this MAA as soon as possible.

The Committee approved the "Checklists" document submitted for approval together with the MAA.

11 OIML Certificate System for Measuring Instruments

11.1 General information

The Committee took note of information delivered by Vice-President Mr. Kochsiek and by the BIML and expressed its satisfaction with the situation, with a special view to the recent publication of P 1.

11.2 New Recommendations applicable within the System

The Committee decided that the following Recommendations would be applicable within the System when published:

- DR 1 Revision of R 48 *Tungsten ribbon lamps for calibration of radiation thermometers*;
- DR 5 (New Recommendation - R 135) *Spectrophotometers for medical laboratories*.

The Committee also decided that the revised R 61-1 and R 61-2 will continue to be applicable within the System as soon as R 61-2 is published together with the revised R 61-1.

The Committee instructed the Secretariat of TC 9/SC 2 to urgently draw up a Supplement to R 61 on Certificate transformation requirements (in analogy with R 60 (2000) Supp.) (with the assistance of the BIML) and a proposal for the deadline for issuing Certificates based on the 1996 edition of R 61, and arrange for its simultaneous postal approval by TC 9/SC 2 and the CIML.

11.3 Follow-up to the revision of P 1 OIML Certificate System for Measuring Instruments

The Committee took note of the proposed necessary actions in implementing the revised P 1 and instructed:

- The TCs/SCs concerned to include corresponding new provisions for modules and families (as far as the definition of families, identification of modules and/or families together with their metrological requirements, test methods and test report forms are concerned) when developing new or revising existing Recommendations intended for application within the System, in order that Certificates may be issued accordingly;
- The Issuing Authorities to readapt their procedures to the modified and new provisions of P 1;
- The TCs/SCs concerned to accelerate the development of horizontal type OIML Documents (e.g. on software, uncertainty, etc.) to be implemented when drawing up new and revised Recommendations including new provisions for modules and families;
- The BIML to follow up on and assist TCs/SCs and Issuing Authorities in the implementation (realization of new and additional tasks) of the revised P 1;

- CIML Members and the BIML to pursue further general actions in promoting the System at national, international and regional levels, and in keeping international and regional organizations in liaison with the OIML informed of the advantages of the System with special regard to its new features.

The Committee instructed the BIML to carry out inquiries among OIML Members and among manufacturers and applicants who already possessed OIML Certificates as to their experience in the voluntary acceptance and use of OIML Certificates for national or regional type approvals, as well as to their views on the functioning of the System with a special view to the new provisions of P 1.

The outcome of these inquiries shall be included in the report on the System to be presented to the 12th Conference next year.

12 Evolutions - General procedures of the OIML

12.1 Revision of the *Directives for Technical Work*

The Committee took note of information given by the BIML on the draft Revision of the Directives and instructed the BIML to set up an ad-hoc Committee to continue the Revision of these Directives with a view to simplifying the procedures, accelerating the development and revision of Recommendations and Documents, and taking account of the requirements of the WTO-TBT Committee on international standard-setting activities. This Revision will be submitted to the CIML for approval as soon as possible.

12.2 Translation and distribution of OIML Publications

The Committee took note of the situation of the postal ballot concerning the draft Rules governing the translation, use and sale of OIML Publications, and approved this draft.

12.3 Draft Guide on the status of OIML Documents and Publications

The Committee took note of information given by the BIML Director concerning a draft Guide on the status of OIML Documents and Publications, and instructed the Bureau to prepare a final draft and to send it to CIML Members with a view to adopting it at the 39th CIML Meeting in 2004.

13 Study on *The Benefit of Legal Metrology for the Economy and Society*

The Committee took note of a presentation given by Mr. John Birch on his report *The Benefit of Legal Metrology for the Economy and Society*. The Committee expressed its great appreciation of this Report and instructed the BIML to distribute it as an expert report. A summary report compiled by Mr. Birch would also be published in the OIML Bulletin.

The Committee instructed the CIML President and the BIML to consider any complementary actions or studies which would appear appropriate with a view to raising the awareness of metrology and legal metrology.

14 Report on the Development Council

14.1 Task Group on Developing Countries

The Committee took note of a presentation given by the CIML President on activities of the Task Group on Developing Countries which had been set up at the last Committee Meeting. The Committee approved the following two proposals made by the CIML President:

- To end the work of this Task Group, considering that it has reached its objectives;
- To set up a permanent Developing Country Working Group (DCWG), appointed by the CIML President and chaired by one of the CIML Vice-Presidents.

The Committee instructed the CIML President and the BIML to draw up a proposal in time for the 12th Conference in 2004, complying with the conclusions of the Development Council Meeting.

14.2 Other developing country activities

The Committee took note of a presentation given by the Development Council Chairperson and by the BIML on the activities of the Development Council, and expressed its appreciation of the work that had been carried out since the last meeting.

14.3 JCDCMAS

The Committee took note of information given by the BIML concerning the setting up, with other international Organizations, of a Joint Committee on coordination of assistance to Developing Countries in Metrology, Accreditation and Standardization (JCDCMAS), and approved the Terms of Reference of this Joint Committee.

The Committee also took note of a report by the BIML on Regional Awareness Seminars which were organized jointly with the IEC under the aegis of the WTO. The Committee encouraged the BIML to organize other Seminars of the same kind in other Regions.

15 Liaisons with international and regional institutions

15.1 Metre Convention, ILAC, ISO, WTO, etc.

The Committee took note of a report, presented by the CIML President, on cooperation with the Metre Convention (BIPM/CIPM) and with ILAC.

The Committee took note of a report given by ILAC and expressed its appreciation of the good cooperation between the OIML and this Organization.

15.2 Draft policy paper on the liaisons with other organizations

The Committee took note of a report given by the BIML Director about the result of the postal approval ballot for the Draft policy paper on OIML liaisons with other organizations. The Committee approved this policy paper.

15.3 Reports from Regional Legal Metrology Organizations (RLMOs)

The Committee took note of information given by representatives of the following Regional Legal Metrology Organizations (RLMOs) concerning their activities: APLMF, COOMET, EMLMF, SADCMEI and WELMEC. In addition, the representative from Burkina Faso gave information on a possible future RLMO in that region of Africa.

15.4 Draft policy paper on coordination with Regional Legal Metrology Organizations (RLMOs)

The Committee took note of a progress report given by the BIML Director on a paper formalizing the relations and cooperation with Regional Legal Metrology Organizations; this paper is being submitted for comments by RLMOs. The Committee instructed the BIML to continue progress with this paper so as to establish a formal framework for OIML cooperation with the RLMOs.

16 Election of the CIML President

In the absence of a conclusive election result and in application of Article XV of the Convention, CIML First Vice-President Mr. Kochsiek was charged with assuming the duties of President. The CIML expressed its deep gratitude to Mr. Faber for his achievements and leadership during his term of office.

17 Future meetings

17.1 39th CIML Meeting and 12th International Conference on Legal Metrology (Berlin, 2004)

The Committee took note of a presentation given by Mr. Kochsiek, on the organization of the 39th Committee Meeting and 12th OIML Conference to be held in Berlin from 25-29 October 2004, as approved at the 37th Committee Meeting in 2002. The Committee expressed its warmest thanks to Germany for their invitation.

17.2 40th CIML Meeting and 50th Anniversary of the OIML (France, 2005)

The Committee accepted the proposal from the BIML to organize the 40th Committee Meeting in Lyon, France, at the end of June 2005, in conjunction with the International Metrology Congress organized by the Collège Français de Métrologie, on the occasion of the 50th anniversary of the OIML.

The Committee asked the BIML and the various TCs/SCs to avoid these dates when planning their own meetings.

17.3 Further meetings

The Committee took note of the intention of Mr. Carstens (CIML Member for South Africa) to hold the 41st CIML Meeting in South Africa. This invitation would be confirmed in due course.

18 Other matters

In recognition of his many years of service to the OIML as CIML Member and President, and also for his further contributions to the Organization, the Committee decided to make a special award to Mr. K. Birkeland.

The Committee also decided to make awards to the following persons in recognition of their outstanding contribution to the work of the Organization:

- Mr. G. Engler (The Netherlands);
- Mr. I. Hoerlein (Australia); and
- Mr. J. Williamson (United Kingdom).

19 Adoption of decisions

The above Decisions and Resolutions were adopted by the Committee.